



CHAPTER cii.

An Act to confirm a Provisional Order under the Private A.D. 1915.
Legislation Procedure (Scotland) Act 1899 relating to
Clackmannan County Water. [13th October 1915.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation Pro- 62 & 63 Vict.
cedure (Scotland) Act 1899 and it is requisite that the said c. 47.
Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present Parliament
assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed shall be and the same is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Clackmannan County Short title.
Water Order Confirmation Act 1915.

A.D. 1915.

SCHEDULE.

CLACKMANNAN COUNTY WATER.

Provisional Order to authorise the County Council of the county of Clackmannan to construct waterworks for the supply of the Alloa and Tillicoultry Special Water Supply District and for other purposes.

WHEREAS the county of Clackmannan is not divided into districts for the purposes of the Local Government (Scotland) Act 1889 and the County Council of the said county (hereinafter referred to as "the County Council") are the local authority for the said county for the execution of the Public Health (Scotland) Acts 1897 to 1907:

And whereas pursuant to the provisions of the Public Health (Scotland) Act 1867 portions of the parishes of Alloa and Tillicoultry situate within the county were formed into a special water supply district by decree of the sheriff of Stirling Dumbarton and Clackmannan dated the fifteenth day of July one thousand eight hundred and ninety-six:

And whereas by an Order of the Secretary for Scotland (hereinafter referred to as "the Order of 1897") made under the last-mentioned Act and confirmed by the Clackmannan (Alloa and Tillicoultry) Water Order Confirmation Act 1897 the County Council were authorised to acquire compulsorily certain lands for the purpose of constructing a reservoir and other waterworks in the valley of the Loss Burn as shown on the plans deposited with reference to the Order of 1897 and of supplying water for domestic trading and manufacturing purposes within the said special water supply district:

And whereas by section 2 of the Order of 1897 it is provided that the said Order is made subject to the terms and conditions of a minute of agreement made between the Right Honourable George Ralph Campbell Baron Abercromby and the County Council dated the twenty-sixth February and third and twelfth March one thousand eight hundred and ninety-seven and registered in the books of Council and Session

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the twenty-fifth day of March one thousand eight hundred and A.D. 1915.
ninety-seven :

And whereas the said agreement provides (inter alia) for the construction by the County Council of the said reservoir and other waterworks in the valley of the Loss Burn and makes certain provisions for the protection of Lord Abercromby with regard to compensation water the construction and maintenance by the County Council of a suitable measuring gauge and for the inspection and examination thereof by Lord Abercromby or an engineer appointed by him :

And whereas the County Council have constructed the said reservoir (which is known as the Loss Burn Reservoir) and other waterworks and are supplying water within the said special water supply district but the supply of water that can be obtained by means of those works is insufficient for the domestic and trading and manufacturing needs of the district and it is expedient that the County Council should be authorised to enlarge the said reservoir and to construct the other works and to appropriate and impound the waters of the streams described and mentioned in this Order :

And whereas in order to give effect to the purposes of this Order it is necessary and expedient that the provisions of the said agreement hereinbefore recited with regard to compensation water should be modified and other provisions made with reference thereto as contained in this Order :

And whereas it is expedient to empower the County Council to enter into agreements or arrangements with any company body or person who may be willing to guarantee the payment of any annual or other sum for a supply of water or to contribute otherwise to the cost of the works authorised by this Order :

And whereas it is expedient that the agreements set forth in the Second Third Fourth and Fifth Schedules to this Order should be confirmed :

And whereas it is expedient that the other powers contained in this Order should be conferred on the County Council :

And whereas estimates have been prepared for the purchase of the land and servitudes required for the construction and maintenance of the works by this Order authorised and for

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A.D. 1915. the execution of those works and such estimates are as follows:—

	£
Land and servitudes - - - -	3,000
Enlargement of reservoir - - - -	12,500
Intake - - - -	300
Filters and tank - - - -	5,500
Trunk conduits and mains - - - -	5,800
Other mains and pipes - - - -	1,100
Subsidiary works - - - -	1,800

And whereas the said several works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines and levels of the works authorised by this Order and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken or used for the purposes of or under the powers of this Order have been deposited with the principal sheriff clerk of the county of Clackmannan in his office at Alloa and with the principal sheriff clerk of the county of Stirling in his office at Stirling and are hereinafter referred to as the deposited plans sections and books of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short and
collective
titles.

1. This Order may be cited as the Clackmannan County Water Order 1915 and this Order and the Order of 1897 may be cited together as the Clackmannan County Water Orders 1897 and 1915.

Commence-
ment of
Order.

2. This Order except where otherwise expressly provided shall commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.”

3. The following Acts and parts of Acts so far as the same A.D. 1915.
are applicable for the purposes and are not inconsistent with Incorporation
the provisions of this Order are hereby incorporated with this of Acts.
Order (that is to say):—

(1) The Lands Clauses Acts :

(2) The Waterworks Clauses Act 1847 except—

(A) The words “with the consent in writing of
“ the owner or reputed owner of any such house
“ or of the agent of such owner” in section 44 of
“ that Act ;

(B) The provisions thereof with respect to the
payment and recovery of the water rates and with
respect to the amount of profit to be received by
the undertakers when the waterworks are carried
on for their benefit and section 83 relating to
accounts :

(3) The Waterworks Clauses Act 1863 :

Provided that—

(A) The County Council shall not be obliged to
furnish a supply of water to any person for any
less sum than five shillings in any one year ;

(B) No person shall be entitled to demand such
supply of water or to require the County Council
to lay down communication pipes unless some pipe
of the County Council shall have been laid within
one hundred feet of the house or other premises
in respect of which such supply or communication
pipes are demanded or unless the County Council
shall become bound by virtue of a requisition and
agreement made and executed in the manner and
to the extent required by the Waterworks Clauses
Act 1847 to cause pipes to be laid down within
the said distance of one hundred feet of such
house or other premises ;

(c) The water to be supplied by the County
Council need not be constantly laid on under
pressure during the execution of necessary repairs
renewals or alterations :

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- (4) The provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof.

This Order shall be deemed to be a special Act within the meaning of the Acts wholly or partially incorporated with this Order.

Interpreta-
tion.

4. In this Order unless there be something in the subject or context repugnant to such construction—

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health (Scotland) Act 1897 have the same respective meanings;

The expression “the county” means the county of Clackmannan;

The expression “the County Council” means the county council of the county;

The expression “the water supply district” means the special water supply district in the county constituted by decree of the sheriff of the counties of Stirling Dumbarton and Clackmannan dated the fifteenth day of July one thousand eight hundred and ninety-six as such district now exists or may from time to time be enlarged or altered;

The expression “the Order of 1897” means the Order confirmed by the Clackmannan (Alloa and Tillicoultry) Water Order Confirmation Act 1897;

The expression “the agreement of 1897” means the agreement mentioned in section 2 of the Order of 1897;

The expression “the sheriff” means the sheriff of the counties of Stirling Dumbarton and Clackmannan and includes his substitutes;

In the Acts wholly or partially incorporated with this Order the expressions “the undertakers” “the company” “the railway company” and “the promoters of the undertaking” mean respectively for the purposes of this Order the County Council.

Power to
make works.

5. Subject to the provisions of this Order the County Council may make and maintain in the lines and according to

the levels shown on the deposited plans and sections the works hereinafter described and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes (that is to say):—

A.D. 1915.

Work No. 1 An enlargement by raising the embankment of the existing reservoir of the County Council on the Loss or Craigencash Burn in the parish of Logie and county of Stirling commencing at a point near the west end of the said reservoir and terminating at the said embankment:

Work No. 2 An intake on the Inchna Burn No. 2 situate at a point five hundred and thirty yards or thereabouts measured in a northerly direction from the point at which the said burn joins the Menstrie Burn and which intake will be situate partly in the parish of Logie in the county of Stirling and partly in the parish of Alva in the county:

Work No. 3 An aqueduct conduit line or lines of pipes commencing in the intake Work No. 2 and terminating in the said existing reservoir and which aqueduct conduit line or lines of pipes will be situate in or pass through the said parishes of Logie and Alva:

Work No. 4 An aqueduct conduit line or lines of pipes commencing in the said intake Work No. 2 and terminating in the existing filters and tank of the County Council situate at Lipney and which aqueduct conduit line or lines of pipes will be situate in or pass through the said parishes of Logie and Alva:

Work No. 5 Filters and a tank situate at Lipney in the said parish of Logie adjoining the existing filters and tank of the County Council at that place:

Work No. 6 An aqueduct conduit line or lines of pipes commencing at the existing filters and tank of the County Council at Lipney aforesaid and terminating at the centre of the cross roads in Tullibody and which aqueduct conduit line or lines of pipes will be situate in or pass through the said parishes of Logie and Alva and the parish of Alloa in the county:

Work No. 7 An aqueduct conduit line or lines of pipes wholly situate in the said parish of Alloa commencing at a point in the public road between King o' Muirs and

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Fishcross at the cross roads near Lochbrae Cottage and terminating at a point in the public road between Fairfield and Hallpark at the railway bridge near the Combination Hospital.

Power to
make sub-
sidiary works.

6. The County Council in addition to the foregoing works may upon the lands delineated on the deposited plans and acquired by them make erect and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices byewashes shafts wells bores water towers overflows waste-water channels gauges filters filter beds tanks banks walls bridges embankments piers approaches machinery and appliances as may be necessary or convenient in connection with or subsidiary to those works but nothing in this section shall exonerate the County Council from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Temporary
occupation
of lands.

7. Except as hereinafter provided the provisions with respect to the temporary occupation of lands of the Railways Clauses Consolidation (Scotland) Act 1845 incorporated with this Order shall apply only to Work No. 1 Work No. 2 Work No. 5 and Work No. 7 authorised by this Order and works immediately connected therewith and for the purposes of this Order the expressions "the railway" and "the centre of the railway" in those provisions shall be construed as meaning the said works and any part of the said works respectively Provided that sections 25 and 26 of the said Act shall apply to all the works by this Order authorised and that for the purposes of such application the prescribed limits mentioned in the said section 25 shall be one thousand yards from any part of the said works.

Limits of
deviation.

8. In the construction of the works authorised by this Order the County Council may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that the County Council shall not construct the embankment or wall of any reservoir of a greater height above the general surface of the ground than

that shown on the deposited sections in respect of the corresponding embankment or wall and five feet in addition and that except for the purpose of crossing over a stream bridge or culvert no part of any pipe shall be raised above the surface of the ground unless and except so far as is so shown on the deposited sections. A.D. 1915.

9. For the purposes of and during the execution of the several works which the County Council are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the County Council may temporarily break up alter divert or cross over or under or stop up any streets highways roads lanes paths bridges railways or tramways shown on the deposited plans and described in the deposited books of reference and any sewers drains watercourses gas pipes water pipes telegraphic telephonic electrical and other mains pipes wires posts and other works in on or under the same or in on or under any of the lands so shown and described which they may from time to time find it expedient for any of those purposes to interfere with the County Council doing as little damage as possible and providing where practicable a proper temporary substitute before interrupting the traffic on any such street highway road lane path bridge railway or tramway or the flow of sewage gas water or electricity or telephonic communication in or by means of any such sewer drain watercourse pipe main wire post or other work and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall extend to authorise any interference with electric telegraphic or telephonic apparatus or other property of His Majesty's Postmaster General Provided also that nothing in this section shall authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with the provisions of that section. Power to alter roads &c. temporarily.

10. The County Council may at any time and from time to time subject to the provisions of this Order and notwithstanding the expiration of the period limited for the completion of works lay down maintain use extend alter renew relay remove replace enlarge and increase the number and size of any of the aqueducts conduits mains pipes and other works of the County Council (other than reservoirs) from time to time in use or required County Council may enlarge or increase number of pipes &c.

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A.D. 1915. for filtering storing conveying and distributing water for the
— purposes of the water supply district or this Order Provided
that such extension alteration enlargement or increase shall be
executed only on lands or property of the County Council or
over which the County Council have acquired a servitude right
for that purpose or which may be acquired by agreement or in
roads or streets which the County Council are authorised by the
Waterworks Clauses Act 1847 or by this Order to open and
break up for such purposes.

User of ac-
commodation
road.

11. The County Council may acquire compulsorily or by
agreement for the purposes of the construction and maintenance
of the works authorised by this Order and the maintenance of
the existing waterworks of the County Council a servitude over
or right of user of the road or track in the parish of Logie in
the county of Stirling which is shown on the deposited plans
and extends from a point in the Sheriffmuir Road eleven
hundred and thirty yards or thereabouts measured in a north-
westerly direction from the west end of the existing Loss Burn
Reservoir of the County Council to a point in the said road or
track numbered 6 on the said plans in the parish of Logie
forty yards or thereabouts measured in a westerly direction
from the west side of Lipney Farm buildings and the considera-
tion to be paid for the purchase of such servitude or right of
user shall in case of dispute be determined in manner provided
by the Lands Clauses Acts with respect to the purchase and
taking of land otherwise than by agreement Declaring that
there is specially excluded from any right conferred by this
section the portion of the said road or track leading from
the last-mentioned point through the grounds of Montagu
Cottage and terminating at the lodge at a point opposite
Cotkerse.

Power to ac-
quire addi-
tional lands
by agree-
ment.

12. In addition to the lands which the County Council
are by the Order of 1897 and this Order authorised to purchase
compulsorily and any other lands which they may acquire and
hold for the protection of their waterworks they may from
time to time by agreement for the purposes of this Order
purchase any additional quantity of land not exceeding in the
whole twenty acres Provided that the County Council shall
not create or permit a nuisance and shall not erect any
buildings on such lands except offices and buildings for persons

in their employ and such buildings as may be incident to or connected with the water supply of the water supply district. A.D. 1915.

13. The County Council shall not construct any works for taking or intercepting water for the supply of the water supply district from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this Order or in an Act of Parliament or Order confirmed by Act of Parliament.

Limiting
power of
County
Council to
abstract
water.

14. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Order grant to the County Council any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Persons
under dis-
ability may
grant servi-
tudes &c.

15. The County Council may in lieu of acquiring any lands for the purposes of the works authorised by this Order where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts:

Power to
acquire ser-
vitudes for
lines of
pipes.

Provided that nothing in this section contained shall authorise the County Council to acquire by compulsion any such servitude in any case in which the owner in his particulars of claim shall require the County Council to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision:

Provided also that as regards any lands in respect of which the County Council have acquired servitudes only under the provisions of this section the County Council shall not be required or entitled to fence off or sever such lands from the

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A.D. 1915. adjoining lands but the owners or occupiers for the time being shall subject to any such servitude have the same rights to use and cultivate the said lands at all times as if this Order had not been confirmed.

Power to hold lands needful to prevent fouling and to protect water.

16. The County Council may hold any lands acquired by them under the powers of the Order of 1897 or this Order and the County Council may by agreement purchase or acquire and hold or may take on lease any other lands rights or servitudes or restrictions over any lands which the County Council may deem necessary for the purpose of preventing the fouling of the water of any stream flowing into any of their waterworks or of obviating danger of contamination of the water in the gathering grounds of any reservoir belonging to the County Council or for the protection of their waterworks against nuisance contamination encroachment or injury and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts but the County Council shall not create or permit a nuisance and shall not erect any buildings on such lands while so held except offices and buildings for persons in their employ and such buildings as may be incident to or connected with the water supply of the water supply district.

As to private rights of way over lands taken compulsorily.

17. All private rights of way over any lands which shall under the powers of this Order be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the County Council shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement.

Power to use lands already acquired.

18. The County Council may use for the purposes of this Order any lands or property already acquired for the purposes of the water supply of the water supply district and which are not required for the purposes for which the same were originally purchased.

Power to take water.

19.—(1) Subject to the provisions of this Order the County Council may by means of the existing waterworks of the County Council and of the works authorised by this Order divert intercept impound take appropriate store use and distribute for the purposes of the water supply of the water

supply district and other purposes of this Order the waters of the streams called the Loss or Craigencash Burn and the Inchna Burn No. 2 and of all or any of the affluents of those streams and of all such streams springs and waters as may be impounded or intercepted by the said works or any of them. A.D. 1915.

(2) The County Council shall not by means of any of the works aforesaid divert intercept impound or take any of the waters of the said Inchna Burn No. 2 unless a flow at the rate of not less than ten thousand gallons per day of twenty-four hours is passing down the course of the said burn past the intake Work No. 2 by this Order authorised.

(3) The County Council shall place a gauge weir across the said Inchna Burn No. 2 at or near the said intake Work No. 2 through or over which ten thousand gallons of water shall be allowed to pass or flow down the said burn during every day of twenty-four hours if and when and so long as the said burn shall during the said twenty-four hours yield the said quantity.

(4) On any day during such time as the flow of water through or over the said gauge weir shall be less than at the rate of ten thousand gallons per day of twenty-four hours the County Council shall not be entitled to draw any water from the said burn but during such time as the flow is in excess of such rate the County Council may take all or such part of the excess as they may require.

20.—(1) From and after the commencement of this Order the following provisions shall apply:—

As to compensation water.

(A) The County Council shall during every day of twenty-four hours discharge or deliver into the said Loss or Craigencash Burn at a point therein situate not more than two hundred yards below the foot of the embankment of the said Loss Burn Reservoir of the County Council not less than two thousand five hundred gallons of water during every hour in a continuous flow :

(B) The County Council shall also during every day of twenty-four hours (excepting during the hours between twelve o'clock noon on Saturday and six o'clock in the morning on the following Monday) discharge or deliver into the said Loss or Craigencash

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Burn at the point aforesaid not less than two thousand five hundred gallons of water during every hour in a continuous flow.

(2) The quantity of water required by this section to be discharged or delivered into the said burn shall be measured by means of the existing gauge below the said reservoir or of a gauge to be provided by the County Council in substitution therefor in or about the same position which shall be maintained by the County Council and over or through which the said compensation water shall flow. The said gauge shall be under the sole management and control of the County Council but shall be open to the inspection and examination of all persons interested therein.

(3) In case of any neglect on the part of the County Council to maintain any gauge in a state of efficiency and in case of any other neglect by or in consequence of which the said respective quantities of compensation water shall not so flow the County Council shall for every day on which such neglect occurs forfeit and pay to each of the persons affected thereby (who may sue for and recover the same) the sum of five pounds and shall in addition make compensation for any loss damage or injury sustained by such persons or any of them.

(4) If any difference arises between the County Council and any person so interested with respect to the construction or use of any gauge or the state of repair or condition thereof or as to the quantity of compensation water such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either of them by the sheriff.

(5) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water which the County Council can divert collect impound or appropriate by means of the works by this Order authorised or of the existing waterworks of the County Council except in respect of any lands situate between the foot of the said embankment and the point of discharge of water into the said Loss or Craigencash Burn mentioned in subsections (1) (A) and (1) (B) of this section.

(6) From and after the commencement of this Order the agreement of 1897 so far as the same relates to compensation

water shall be and the same is hereby modified in terms of A.D. 1915.
the foregoing provisions of this section and of the agreement
with the Right Honourable Baron Abercromby set forth in the
Second Schedule to this Order.

21. The powers for the compulsory purchase of lands for Period for
the purposes of this Order shall cease after the expiration of compulsory
three years from the commencement of this Order. purchase of
lands.

22. If Works Nos. 2 and 4 authorised by this Order are Period for
not completed within five years and the other works by this completion
Order authorised within twelve years from the commencement of works.
of this Order or the termination of the present war whichever
shall be the later date then on the expiration of those respec-
tive periods the powers granted to the County Council for
making and completing the same respectively or otherwise in
relation thereto shall cease except as to so much thereof as is
then completed.

23. And whereas in the exercise of the powers of this Order Owners may
it may happen that portions only of the houses or other be required
buildings or manufactories shown on the deposited plans may to sell parts
be sufficient for the purposes of this Order and that such only of cer-
portions may be severed from the remainder of the said tain proper-
properties without material detriment thereto Therefore not- ties.
withstanding section 90 of the Lands Clauses Consolidation
(Scotland) Act 1845 the owners of and other persons interested
in any of the properties described in the First Schedule to this
Order whereof parts only may be required for the purposes of
this Order may if such portions can in the opinion of the jury
arbiters or other authority to whom the question of disputed
compensation shall be submitted be severed from the remainder
of the premises without material detriment thereto be required
to sell and convey to the County Council the portions only of
the premises so required without the County Council being
obliged or compellable to purchase the whole or any greater
portion thereof the County Council paying for the portions
taken by them and making compensation for any damage
sustained by the owners thereof and other parties interested
therein by severance or otherwise.

24. The County Council may make and carry into effect Power to
agreements with the owners lessees or occupiers of any lands agree as to
within the drainage area of any of the waterworks of the drainage of
lands.

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A.D. 1915. County Council with reference to the execution by the County Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectively collecting conveying and preserving the purity of the waters flowing to upon or from such lands directly or derivatively into such waterworks.

Power to
discharge
water into
streams.

25. The County Council may for the purpose of the inspecting cleansing or repairing of any of their waterworks discharge water from any of such waterworks into any available stream or watercourse with which any of such waterworks may communicate In the exercise of the powers conferred by this section the County Council shall do as little damage as may be and shall make full compensation for all damage caused by reason or in consequence of the exercise of such powers and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Lands Clauses Acts.

Accommoda-
tion for
workmen
&c.

26. The County Council shall if and when required by the local authority of the district in which are situate the works or any part of the Works Nos. 1 to 6 inclusive by this Order authorised (in this section called "the local authority") make provision to the satisfaction of the local authority for the proper housing and sanitary requirements of the persons employed in constructing the said works or parts of works and for the treatment of cases of sickness (other than infectious disease) and accident occurring among the said persons during the construction of the said works In considering what provision ought to be made for the said purposes the local authority shall take into consideration the provision already available in the neighbourhood of or conveniently accessible from the said works.

In the event of any dispute arising between the County Council and the local authority as to the amount or nature or situation of the housing accommodation or sanitary requirements to be provided or as to the sufficiency of the provision for the treatment of cases of sickness (other than infectious disease) and accident or as to the time within which such accommodation shall be provided and such provision made or as to the carrying out by the County Council of any requirement of the local authority under this section either party may

appeal to the Local Government Board for Scotland (in this section called "the Board") and the decision of the Board shall be final and binding on both parties. A.D. 1915.

Provided that if it appears to the Board at any time that sufficient provision for the aforesaid purposes is not made the Board shall have power to require the County Council to make provision or additional provision therefor to the satisfaction of the Board.

In the event of the County Council or the local authority failing to comply with any order or requirement of the Board under this section they shall be liable to a penalty not exceeding five pounds for every day during which such failure continues and such penalty shall be recoverable with expenses at the instance of the Lord Advocate on behalf of the Board in any competent court.

For the purposes of this section the Board shall have the same powers of holding inquiries and of requiring reports to be made by local authorities and their officials as they have under the Public Health (Scotland) Act 1897 for the purposes of that Act and the provisions of the said Act relating to such inquiries and reports shall apply accordingly.

27. The County Council may at any time for the purpose of conveying water from any of their waterworks whether existing or authorised by this Order or for distributing or supplying water beyond the water supply district with the consent of the road authority lay down make maintain and use aqueducts conduits or lines of pipes through over under along across or into any public road or highway and may renew alter enlarge duplicate and increase the number and size thereof or extend the same and stop up temporarily any such public road or highway for such purpose providing where possible a proper temporary substitute to the reasonable satisfaction of the road authority before interrupting the traffic on such road and making full compensation to all persons injuriously affected by anything done under the provisions of this section. Provided that nothing in this section shall prejudice extend or affect the powers or provisions of this Order with respect to the works authorised by this Order. Power to lay mains in public roads.

28. The County Council may on the application of the owner or occupier of any premises within the water supply district abutting on or being erected in any street laid out but Power to lay pipes in streets not dedicated to public use.

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915. — not dedicated to the public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if such street were a street within the meaning of those Acts.

Confirmation
of agreement
with Lord
Abercromby.

29.—(1) The agreement between the Right Honourable George Ralph Campbell of Lochland Baron Abercromby of the first part and the County Council of the second part as set forth in the Second Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto.

(2) For the purposes of the said agreement the expression "the waterworks of the local authority" appearing therein shall mean and include the works authorised by this Order and the existing waterworks of the County Council for the supply of the water supply district.

Confirmation
of agreement
with Dis-
tillers Com-
pany Limited
and others.

30. The agreement between the County Council of the one part and the Distillers Company Limited and others of the other part as set forth in the Third Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto.

For protec-
tion of North
British Rail-
way Com-
pany.

31. The following provisions for the protection of the North British Railway Company (hereinafter called "the North British Company") shall unless otherwise agreed between the North British Company and the County Council apply and have effect (that is to say):—

(1) The County Council shall not under the powers of this Order take or acquire by compulsion any lands or property of the North British Company but shall be entitled to acquire such servitudes in and under the lands and property of the North British Company as may be required for making and maintaining any works carried out by the County Council under the authority of this Order:

(2) Before commencing the construction under the powers of this Order of the said works in so far as affecting the lands or property of the North British Company the County Council shall submit plans sections and specifications of their works to the North British

Company for their approval and the said works shall be constructed and carried out in conformity only with such plans sections and specifications as approved and at the sight and to the reasonable satisfaction of the engineer of the North British Company and such works shall thereafter be maintained by the County Council to the reasonable satisfaction of such engineer provided that the approval of the North British Company shall not be unreasonably withheld and that it shall be deemed to have been given unless the North British Company signify their disapproval within fourteen days after submission of the said plans sections and specifications Provided also that any expenses which the North British Company may reasonably incur for inspection or superintendence of the said works during execution or in connection with the maintenance or repair of these works at any time or in protecting their property during or in connection with the construction maintenance or repair of the said works shall be repaid to them by the County Council :

A.D. 1915.

- (3) All the works and operations of the County Council under the powers of this Order shall be constructed executed and completed so as not to injuriously affect the structure of any bridge of the North British Company or to cause any injury thereto or to any railway of that company or any interruption to the passage or conduct of traffic on any such railway and if any injury or interruption shall arise from or be in any way owing to the works or operations of the County Council or the bursting leakage or failure of the said works or any of them the County Council shall forthwith make good or remove such injury or interruption at their own expense or the North British Company may do the same and the County Council shall pay to the North British Company all proper and reasonable costs and expenses loss or damage including loss of traffic incurred or sustained by them in respect thereof :

- (4) The County Council shall free and relieve the North British Company from all claims whatsoever by third

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915.

parties arising out of the construction or existence of the said works or the bursting leakage or failure thereof :

- (5) The North British Company may repair and when necessary alter or reconstruct their railways or any bridge under or over which the said works or any of them may be laid but not so as to injuriously affect the said works of the County Council or to interrupt the water supply otherwise than may be reasonably necessary in connection with any work of repair alteration or reconstruction by the North British Company and if any injury or other interruption shall arise to the said works or any of them from or be owing in any way to any works or operations of the North British Company on any railway or on any such bridge the North British Company shall forthwith make good or remove such injury or interruption at their own expense or failing their doing so the County Council may do the same and the North British Company shall pay to the County Council all costs and expenses loss or damage incurred or sustained by them in respect thereof Provided that any such works of the North British Company shall so far as they may interfere with the works of the County Council be done to the reasonable satisfaction of the engineer of the County Council Any extra expense which the North British Company would not have incurred in such repair alteration or reconstruction but for the construction or existence of the said works shall be paid by the County Council and such extra expense if any shall failing agreement be determined by the arbiter to be appointed as after-mentioned :
- (6) The North British Company shall be entitled to a reasonable supply of surplus water under the section of this Order of which the marginal note is " Purposes to which new water supply applicable " and in the event of there being any dispute at any time between the County Council and the North British Company as to the rate to be charged from time to time for water so to be supplied to the North British Company within or beyond the water supply district or as to

the ability of the County Council to give a supply to the North British Company or as to the amount of such supply the same shall be referred to the sheriff upon summary application by either of the parties and the decision of the sheriff on the question so referred shall be final: A.D. 1915.

- (7) If any difference shall arise between the County Council and the North British Company or between the respective engineers of the County Council and the North British Company as to the meaning of this section or any matter arising under the provisions of this section or as to any plans or sections or the mode of executing any works or as to any costs or expenses loss or damage provided for in this section such difference shall (unless herein otherwise provided) be determined by an arbiter to be appointed failing agreement by the sheriff on the application of either party.

32. The agreement between Lieutenant-Colonel James Hare and the County Council set forth in the Fourth Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto. Confirmation of agreement with Colonel Hare.

33. The agreement between the County Council of the first part and the Charrier and Marbut Carvings Limited and others of the second part as set forth in the Fifth Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto. Confirmation of agreement with Charrier and Marbut Carvings Limited and others.

34. The water obtained under the powers of this Order and the existing water supply of the County Council shall be applied by the County Council primarily for the supply of the domestic and sanitary requirements of the water supply district and subject thereto the County Council may supply any surplus water for (a) trading manufacturing and all other than domestic and sanitary purposes within the said district upon the terms and subject to the conditions prescribed by subsection (2) of section 126 of the Public Health (Scotland) Act 1897 and (b) domestic sanitary trading manufacturing and all other purposes in any other part of the county upon such terms and conditions as may be agreed upon between the County Council and the person desiring the supply Provided that the supply of water Purposes to which new water supply applicable.

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915. beyond the water supply district shall not prejudicially affect or restrict the supply of water from time to time for any purpose within the water supply district.

Meter rate.

35. The meter rate for every one thousand gallons of water supplied for other than domestic purposes to persons within the water supply district shall in any year be the nearest farthing above ten per centum added to the quotient ascertained by dividing the total annual expenditure upon the water undertaking of the water supply district for maintaining and carrying on the same including such repairs and renewals as are reasonably chargeable against annual income and also interest and sinking fund in respect of borrowed money but excluding capital expenditure on new works in that year paid for out of borrowed money by the number of thousands of gallons which in the same year passed through the meter near the filters. Provided that in the case of the guarantors during the currency of the guarantees the rate to be charged against them shall be one penny less than the meter rate as above ascertained for each one thousand gallons of additional water taken by them respectively above their respective proportions of the weekly quantities of three hundred and fifty thousand gallons and seven hundred thousand gallons specified in the agreement set forth in the Third Schedule to this Order during the periods mentioned in the said agreement. During the currency of the guarantees persons supplied for the first time after the commencement of this Order with water for other than domestic purposes shall pay for the water consumed by them at meter rates which shall exceed by twopence per one thousand gallons the rates chargeable to the guarantors. In this section "guarantors" means the parties of the second part to the agreement set forth in the Third Schedule to this Order and "guarantees" means the guarantees by the said agreement undertaken by each of those parties respectively.

Agreements
for supply of
water.

36. The County Council may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the water supply district to any such local authority company or person in bulk for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that a supply of water under this section shall not prejudicially affect or restrict the supply of water from time to time for any purpose within

the water supply district Provided further that a supply of A.D. 1915.
 water under this section shall not be given except with the
 consent of any local authority company or person supplying
 water under parliamentary authority within the district in which
 the supply is to be afforded and of the local authority of that
 district.

37. Any revenue arising from the supply of water by the County Council for any purpose beyond the water supply district so far as not required to meet the expenses incurred by the County Council in affording the supply shall be applied to the same purposes as those to which the water assessments leviable within the water supply district are applicable.

Application of revenue arising from supply outside district.

38. The County Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

County Council not bound to supply several houses by one pipe.

39.—(1) The County Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

Byelaws for preventing waste &c. of water.

(2) Byelaws made under this section shall apply only in the case of premises to which the County Council are bound to afford and do in fact afford or are prepared on demand to afford a supply and the provisions with respect to byelaws contained in sections 183 to 187 of the Public Health (Scotland) Act 1897 shall apply to all byelaws so made.

(3) In case of failure by any person to observe byelaws made under this section for the time being in force the County Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915. — accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the County Council as the water assessments in respect of the premises are recoverable.

Supply to
houses partly
used for
trade.

40. The County Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Power to
sell meters.

41. The County Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they may think fit. The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the County Council to let for hire any water fittings to any person supplied by them with water.

Notice to
County
Council of
connecting
or discon-
necting
meters.

42. Before any person connects or disconnects any meter by means of which any of the water of the County Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the County Council of his intention so to do and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the County Council and any person offending against this enactment shall be liable to a penalty not exceeding forty shillings.

Agreements
with traders.

43. The County Council may enter into and carry into effect agreements or arrangements with any company or person who may be willing to guarantee the payment by such company or person of any annual or other sum for a supply of water or to contribute otherwise towards the cost of the works authorised by this Order and any moneys received by the County Council under any such agreement or arrangement shall if of the nature of annual revenue be applied to the same purposes as those to which the water assessments leviable within the water supply district are applicable and if of the nature of capital shall be applied in payment of the cost of the said works or in repayment of moneys borrowed for the purposes of or to other purposes of the water undertaking of the water supply district to which capital is properly applicable.

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

44.—(1) The works authorised by this Order and the water supply obtained therefrom shall be held and used by the County Council as part of their existing water undertaking for the supply of the water supply district and subject to the provisions of this Order all the powers and provisions of the Public Health (Scotland) Act 1897 and other Acts with respect to the supply of water the levying of rates charges and assessments the borrowing of money and the repayment thereof and other matters which are applicable to such water undertaking or are exerciseable by the County Council in connection with the supply of water to the water supply district shall extend and apply and may be exercised in connection with the works and water supply authorised by this Order Provided that the total amount to be borrowed by the County Council under and for the purposes of this Order shall not exceed forty thousand pounds.

A.D. 1915.
Works to
form part of
existing
water under-
taking of
County
Council.

(2) Any moneys borrowed for the purposes of this Order shall be repaid within such period not exceeding fifty years as the County Council with the consent of the Standing Joint Committee shall determine Provided that if the period so determined exceeds forty years the loan to which the determination relates shall be repaid by equal yearly or half-yearly instalments of principal or by means of a non-accumulating sinking fund set apart invested and applied in accordance with regulations framed by the Secretary for Scotland under section 67 of the Local Government (Scotland) Act 1889 for the time being in force.

45. The County Council may apply for the purposes of this Order to which capital is properly applicable any money already borrowed by them for the purposes of the water undertaking of the water supply district which is not required for the purposes for which the same was borrowed.

Power to
apply funds.

46. Notwithstanding anything contained in this Order the County Council shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction
on exercise
of borrowing
powers.

47. The costs charges and expenses of and incident to the preparing for obtaining and confirming this Order and otherwise in relation thereto shall be paid by the County Council

Costs of
Order.

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 Geo. 5.]
Confirmation Act, 1915.

A.D. 1915. out of the assessments authorised to be levied for water supply within the water supply district or out of money which the County Council are authorised to borrow for the purposes of such supply or out of any other money which the County Council may legally apply to the payment of such costs charges and expenses but if such costs charges and expenses are paid out of borrowed money the same shall be repaid within five years from the commencement of this Order.

SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

PROPERTIES PARTS ONLY OF WHICH MAY BE TAKEN.

Parish.	Numbers on deposited Plans.
WORK NO. 1 AND WORK NO. 3.	
Logie - - - - -	12 14 15
WORK NO. 6.	
Alva - - - - -	13 15

THE SECOND SCHEDULE.

MINUTE OF AGREEMENT between the Right Honourable GEORGE RALPH CAMPBELL OF LOCHLAND BARON ABERCROMBY OF ABOUKIR AND TULLIBODY (hereinafter called "Lord Abercromby") of the first part and the COUNTY COUNCIL OF THE COUNTY OF CLACKMANNAN as the local authority under the Public Health Acts (hereinafter called "the Local Authority") of the second part.

WHEREAS by minute of agreement entered into between Lord Abercromby of the first part and the Local Authority of the second part dated and sealed the 26th day of February and the 3rd and 12th both days of March and registered in the books of Council and Session the 25th day of March all in the year 1897 the parties thereto

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

on the narrative that the Local Authority had made application to the Secretary for Scotland for a Provisional Order under the Public Health (Scotland) Act 1867 and Acts amending and extending the said Act to empower the Local Authority within the said district of the county of Clackmannan to construct certain waterworks and to supply water within the limits of the special water supply district referred to in said Provisional Order and also to give a supply of water from the surplus if any to the inhabitants and occupiers of houses and lands adjoining or near to said waterworks or in other districts and places And on the further narrative that Lord Abercromby was a landowner within said district And on the further narrative that it was intended by said Provisional Order to abstract the water of the Craigencash or Loss Burn which burn was shown on the plans deposited with said Provisional Order as the source of supply for said district and on the further narrative that the said Craigencash or Loss Burn formed one of the sources of supply to Lord Abercromby's estate of Menstrie And on the further narrative that the said abstraction would affect said supply as well as interfere with Lord Abercromby's riparian rights in said water And on the further narrative that with the view of obviating Lord Abercromby's objections to said Provisional Order the Local Authority had agreed to enter into said minute of agreement—agreed as to the terms and conditions on which the Local Authority should acquire the right to take a water supply from said Craigencash or Loss Burn:

A.D. 1915.

And whereas upon the said application by the Local Authority the Secretary for Scotland made the said Order under the Public Health (Scotland) Act 1897 which was confirmed by the Clackmannan (Alloa and Tillicoultry) Water Order Confirmation Act 1897 and which was in terms of section 2 thereof made subject to the terms and conditions of the said minute of agreement:

And whereas the Local Authority under the provisions of the Public Health (Scotland) Acts 1897 to 1907 and the Private Legislation Procedure (Scotland) Act 1899 have made application to the Secretary for Scotland for a Provisional Order (hereinafter called "the Order") to empower the Local Authority inter alia to enlarge the existing reservoir and to construct other works and to appropriate and impound the waters of Inchna Burn No. 2 and for other purposes:

And whereas the Local Authority and Lord Abercromby have agreed to modify the terms of the said minute of agreement and have now agreed as to the terms and conditions on which the Local Authority are to acquire Lord Abercromby's rights in the said water and upon the various provisions to be made thereanent and it is right and proper that the said agreement should be reduced to writing:

[Ch. cii.] *Clackmannan County Water Order [5 & 6 GEO. 5.]*
Confirmation Act, 1915.

A.D. 1915. Therefore the parties hereto have agreed and do hereby agree as follows:—

First Lord Abercromby hereby authorises and empowers the Local Authority provided a daily flow of at least 10,000 gallons is first allowed to pass the point of intake hereinafter mentioned as compensation water and provided also that no water shall be abstracted when there is less than 10,000 gallons per day flowing in Inchna Burn No. 2 to abstract the water of said Inchna Burn No. 2 by means of the intake (Work No. 2) and the conduits (Works Nos. 3 and 4) shown on the plans deposited with the Order The Local Authority shall be entitled to conduct the water so abstracted into the waterworks of the Local Authority.

Second Whereas by the first article of said minute of agreement it is provided inter alia that the Local Authority should provide a certain daily preferential supply of water as compensation water from Loss Burn Reservoir to said Loss Burn and that in a continuous and uniform stream during every day of 24 hours the parties hereto have agreed and hereby agree that Lord Abercromby shall accept the compensation water provided by the Order as in lieu and full satisfaction of the compensation water provided by said minute of agreement.

Third In the event of the Local Authority proceeding to take the surplus waters of the Keir Burn the Crummie Burn the third Inchna Burn and the first Inchna Burn or any of them into their waterworks by means of intakes or otherwise on the said streams respectively they shall make such provision to the satisfaction of an engineer to be appointed failing agreement by the sheriff of the county of Clackmannan that no water shall or can be appropriated from the said intakes or otherwise until a flow at the rate of 10,000 gallons per day of 24 hours shall have first passed down the course of each of said streams which may have been appropriated and shall pay Lord Abercromby £5 sterling per month for each stream from which water is so abstracted for the time being provided always that said money payments shall not continue any longer than the time of abstracting water.

Fourth In respect the village of Menstrie is already provided with an adequate supply of water the Local Authority hereby bind themselves to exclude said village from any special water supply district to be formed by them unless specially requested upon a statutory requisition from the ratepayers of the district to include the same therein And they meantime bind themselves in the event of there being any deficiency in the existing water supply of said village to provide out of surplus water after the requirements of domestic consumers and traders within the district have been provided for a supply of filtered water for domestic purposes not exceeding

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

5,000 gallons per day at the rate to be paid by meter within the water district In the event of said supply of 5,000 gallons per day not being required at any time for said village or in the event of said village being included in the special water district the said supply shall be held as available for and Lord Abercromby shall have right to use the same for any other portions of his estate which may at any time require a supply of water. A.D. 1915.

Fifth Lord Abercromby agrees to give to the Local Authority at nominal charges the land required for the intake &c. and also the necessary wayleave for the pipes required to conduct said abstracted water to the waterworks of the Local Authority In the event of the Local Authority obtaining and exercising the powers craved under the Order for enlarging the existing Loss Burn Reservoir Lord Abercromby agrees to give to the Local Authority the land required for such extension or for the erection of filters so far as the same may belong to him at such a price as failing agreement may be fixed by arbitration it being a condition of this that the Local Authority shall pay the whole expenses of such arbitration.

Sixth In consideration of the rights and privileges hereby conferred the Local Authority hereby agree to pay to Lord Abercromby the sum of £750 sterling which sum shall be payable on the execution and delivery of these presents but which payment shall be conditional upon the Order being confirmed and subject to the terms of article eleventh hereof.

Seventh In addition to the free daily supply of 2,000 gallons of filtered water provided by the Local Authority in terms of article fifth of the said agreement of 1897 for Lord Abercromby's farms of Menstrie Place Menstrie Mains and Girnel the Local Authority agree to provide a further free daily supply of 2,000 gallons of filtered water for (1) said farm of Girnel (2) two fields on the farm of Menstrie Mains situated between the farm of Girnel and the main road and (3) the farm of Loaningbank The Local Authority further agree to supply and lay at the sight and to the satisfaction of an engineer to be appointed by Lord Abercromby whose fees shall be paid by the Local Authority such piping as may be necessary to provide the said additional free daily supply of water to said farm of Girnel said two fields on Menstrie Mains and to the field on Loaningbank situated on the north side of the main road and adjoining the public school with suitable water meter to supply Lord Abercromby if asked with monthly readings of said meter and to maintain in all time coming the water pipes meter and other fittings Further the Local Authority agree to put cattle troughs so far as necessary in all the fields fitted with proper ball cocks and to maintain the same in all time coming And Lord Abercromby agrees that his employees

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 Geo. 5.]
Confirmation Act, 1915.

A.D. 1915. and tenants shall take all reasonable care of the said fittings and
— troughs.

Eighth The Local Authority shall pay the whole expenses incurred by Lord Abercromby in connection with the negotiations for and the preparation adjustment and execution of these presents and in connection with the confirmation of the Order including the engineer's fees.

Ninth The Local Authority hereby agree to free and relieve Lord Abercromby of all actions claims and demands which may be brought against him at the instance of any of his feuars disponees mill or other tenants or at the instance of third parties and also to free relieve indemnify and skaithless keep Lord Abercromby of and against all loss damage and expense which he may incur or sustain by or in consequence of the execution of these presents or of the powers contained in the Order And Lord Abercromby agrees to give what reasonable assistance he can to the Local Authority in settling with his feuars disponees and tenants.

Tenth The parties hereto hereby confirm said minute of agreement entered into between them dated and sealed 26th February and 3rd and 12th March 1897 except only in so far as inconsistent with the terms and provisions of this agreement.

Eleventh The parties hereto hereby provide and declare that this agreement has been entered into by Lord Abercromby and the Local Authority subject to such alterations as may be made therein during the progress of the Provisional Order but if in the opinion of the Dean of the Faculty of Advocates any material alteration be so made thereon it shall be competent to either party to cancel said agreement.

Twelfth The parties agree and undertake that this agreement shall be scheduled to the Order.

Thirteenth If any difference shall arise between the parties hereto with reference to the provisions hereof or the rights and interests of parties under the same such difference shall be determined by an arbiter to be agreed upon between the parties or in default of agreement by an arbiter to be appointed on the application of either party by the sheriff of the county of Clackmannan and the decision of such arbiter shall be conclusive and binding on both parties and both parties bind themselves to implement their respective parts of these presents as well as the decree or decrees arbitral to be pronounced by said arbiter under the penalty of £200 sterling and that over and above performance and the parties hereto consent to registration hereof for preservation and execution.

In witness whereof these presents typewritten on this and the five preceding pages for Messrs. T. and R. B. Ranken writers to the signet

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

Edinburgh are executed in duplicate as follows videlicet They are A.D. 1915.
sealed with the common or corporate seal of the said County Council
and are subscribed by the Right Honourable the Earl of Mar and
Kellie Knight of the Thistle convener Thomas Sime Knox a member
and James Whitehead Moir the clerk all of the said County Council
for and on its behalf and as duly authorised all at Alloa on the nine-
teenth day of March nineteen hundred and fifteen before these witnesses
James Jamieson Cochrane and David King both clerks to the said
James Whitehead Moir and they are subscribed by the said Baron
Abercromby at London on the twenty-third day of March in said year
before these witnesses Harry Weller Richards solicitor London and
William Smith valet to the said Baron Abercromby.

H. WELLER RICHARDS Witness.

ABERCROMBY.

WILLIAM SMITH Witness.

JAMES J. COCHRANE Witness.

DAVID KING Witness.

Seal.

MAR AND KELLIE Convener.

THOMAS S. KNOX C.C.

J. W. MOIR Clerk.

THE THIRD SCHEDULE.

AGREEMENT between the COUNTY COUNCIL OF THE COUNTY OF
CLACKMANNAN (hereinafter referred to as "the County
Council") of the one part and (one) the DISTILLERS
COMPANY LIMITED incorporated under the Companies Acts
1862 and 1867 and having their registered office at No. 12
Torphichen Street Edinburgh (two) Messrs. ROBERT KNOX
brewers carrying on business at Forth Brewery Cambus and
THOMAS SIME KNOX and RALPH WILLIAM KNOX both
residing at Cambus aforesaid the individual partners of said
firm and (three) JOHN TULLIS AND SON LIMITED tanners
and curriers Glasgow incorporated under the Companies
Acts 1862 to 1890 and having their registered office at
No. 78 John Street Bridgeton Glasgow carrying on business
at Tullibody under the name of the Tullibody Tanning
Company (all hereinafter referred to as "the guarantors")
of the other part.

WHEREAS the County Council are the local authority for the county of
Clackmannan for the execution of the Public Health (Scotland) Acts
1897 and 1907 :

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915.

And whereas pursuant to the provisions of the Public Health (Scotland) Act 1867 portions of the parishes of Alloa and Tillicoultry situate within the said county were formed into a special water supply district by decree of the sheriff of Stirling Dumbarton and Clackmannan dated the 15th day of July 1896 :

And whereas by an Order of the Secretary for Scotland confirmed by the Clackmannan (Alloa and Tillicoultry) Water Order Confirmation Act 1897 the County Council were authorised to acquire certain lands for the purpose of constructing a reservoir and other works and of supplying water for domestic trading and manufacturing purposes within the said special water supply district :

And whereas the County Council constructed the said reservoir (known as the Loss Burn Reservoir) and other works and are supplying water within the said district :

And whereas under the provisions of the Private Legislation Procedure (Scotland) Act 1899 a draft Provisional Order (hereinafter referred to as "the Order") was on or about the 17th day of December 1914 deposited with the Secretary for Scotland entitled "Draft Provisional Order to authorise the County Council of the county of Clackmannan to construct waterworks for the supply of the Alloa and Tillicoultry Special Water Supply District and for other purposes" against which the guarantors lodged a petition :

And whereas by the preamble of the Order it is inter alia narrated that the supply of water that can be obtained by means of the said Loss Burn Reservoir and other works is insufficient for the domestic and trading and manufacturing needs of the district and it is expedient that the County Council should be authorised to enlarge the said reservoir and to construct the other works and to appropriate and impound the waters of the streams described and mentioned in the Order :

And whereas by the Order it is provided that the water obtained under the powers of the Order and the existing water supply of the County Council should be applied by the County Council primarily for the supply of the domestic and sanitary requirements of the said district and subject thereto the County Council may supply any surplus water for trading manufacturing and all other than domestic purposes within the said district and for domestic trading manufacturing and all other than domestic purposes in any other part of the county Provided that the supply of water beyond the said district should not prejudicially affect or restrict the supply of water from time to time for any purpose within the said water supply district :

And whereas by the Order it is further provided that the County Council may enter into and carry into effect agreements or arrangements with any company or person who may be willing to guarantee

the payment by such company or person of any annual or other sum for a supply of water and any moneys received by the County Council under any such agreement or arrangement shall if of the nature of annual revenue be applied to the same purposes as those to which the water assessments leviable within the water supply district are applicable : A.D. 1915.

And whereas the guarantors are the only manufacturers within the said district and they have in the past paid a large proportion of the water assessments within the said district :

And whereas for the purposes of their respective trades they require a constant and plentiful supply of water and have been unable from the surplus water available from the said reservoir and works to obtain such a supply :

And whereas the County Council have been advised that the carrying out of that part of the works authorised by the Order which the County Council have at present under contemplation as aftermentioned should make available further supplies of water which will afford to the guarantors at least the minimum weekly supply of 350,000 gallons of surplus water hereinafter mentioned and a larger weekly supply during certain periods of the year and for the purpose of obtaining the said minimum supply of water and the additional supplies after specified the guarantors have agreed to make the payments after mentioned :

Therefore the parties have agreed and hereby agree as follows (viz.) :—

First The County Council shall take all necessary proceedings for obtaining a Provisional Order in terms of the draft Order and the guarantors shall withdraw their petition against the Order On obtaining the necessary powers the County Council shall forthwith cause to be executed and completed Works No. 2 and No. 4 detailed in the Order viz. the intake on the Inchna Burn No. 2 and the line of pipes therefrom to the existing filters and tank of the County Council and other works relative thereto The County Council shall also introduce such meters and other suitable appliances and continue to execute such repairs and improvements on their present works and exercise such supervision as may be necessary to detect check and obviate all loss of water from leaks unsuitable or defective appliances waste or similar causes They shall also do their best to arrange for the compensation water set forth in the Order being provided in place of the compensation water formerly required and to settle with all persons entitled to compensation so as to allow of as large a supply of surplus water as is possible from the works and arrangements above mentioned being available for the guarantors.

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915.

Second The guarantors shall contribute towards the cost of the Works No. 2 and No. 4 set forth in the preceding article including the cost of land or wayleaves in connection therewith and such sums as may be payable to riparian proprietors and millers in lieu of compensation water from the Loss or Menstrie Burn and Inchna Burn No. 2 in terms of the Order as follows The County Council shall borrow either at one time or by such instalments as may be necessary such sum as may be required to meet such cost and sums payable as compensation on the best terms available at the time as regards interest and on condition that the same shall be repayable by a sinking fund spread over a period of 40 years from the date or dates of borrowing or such other period not under 30 years as the Secretary for Scotland may allow to be inserted in the Order and the guarantors in the proportions and subject to the conditions after-mentioned shall pay annually along with their water assessments one half of the interest and sinking fund payable in respect of the sum or sums so borrowed during said period of 40 years or such other period as aforesaid up to a maximum annual payment by the guarantors (in the proportions after mentioned) of £250 in respect of the total sum or sums borrowed if the period for repayment is fixed at 30 years or up to a proportionately lower maximum annual payment if the period of repayment shall extend beyond 30 years.

Third The respective guarantors so long as they remain proprietors of their present works within the district including any additions which may be made thereto and their respective successors in the same shall be liable to make the payments and shall be entitled to the supplies of water as set forth in and subject to the whole conditions of this agreement provided always that the respective guarantors and their respective successors or representatives shall not continue to be personally liable for the payments herein set forth after ceasing to be proprietors of their respective works nor shall they be personally liable for said payments in the event of any of said works being permanently shut down.

Fourth The County Council will do what they reasonably can to deliver to the guarantors and the said guarantors shall be entitled to take a minimum annual supply of surplus water in a reasonably uniform flow at the rate of 350,000 gallons per week during the year divided among the guarantors as aftermentioned and the County Council shall not be entitled to make any extra charge against the guarantors or any of them beyond the amounts of their respective annual assessments and proportions of the total annual guarantee in respect of the said minimum annual supply and further supply to be given as aftermentioned In the event of any of the guarantors receiving in any week during the six months from May to October

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

A.D. 1915.

both inclusive more than their respective proportions of 350,000 gallons the additional water above their respective proportions of 350,000 gallons so received shall be paid for by such respective guarantors receiving the same by a sum for each 1,000 gallons thereof fixed as hereafter provided in respect of the additional water for these six months subject to the condition aftermentioned and to the provisions of article seventh hereof During the six remaining months in the year viz. November December and January to April both inclusive the County Council will do what they reasonably can to deliver to the guarantors a further weekly supply of 350,000 gallons or such less quantity than 350,000 gallons as in the opinion of the County Council or their engineer is available of surplus water over and above the minimum weekly supply of 350,000 gallons above mentioned making a total weekly supply of 700,000 gallons or such less quantity as is available as aforesaid so far as the guarantors may wish to take their respective proportions thereof and so far as the existing pipes of the County Council will allow of the delivery of such further supply or such part thereof as said pipes will carry after duly providing for the requirements of the domestic consumers and the sanitary requirements of the district and in the event of any of the guarantors receiving in any week during the said six months of the year viz. November to April both inclusive more than their respective proportions of said 700,000 gallons the additional water above their respective proportions of 700,000 gallons so received shall be paid for by such guarantors receiving the same by a sum for each 1,000 gallons thereof fixed as hereafter provided in respect of the additional water for these last mentioned six months subject to the provisions of article seventh hereof In the event of any of the guarantors being willing to receive and not receiving during any week in the year a total quantity of water equal to their respective proportions of 350,000 gallons then the total amount of the guarantee to be paid by such guarantor for that year shall be diminished by the proportion which the total weekly shortages of water for the year in the case of such guarantor bear to such guarantor's proportion of the total quantity of 18,250,000 gallons being 350,000 gallons per week Providing however that if the County Council are able and willing to supply in any week the said minimum weekly supply of 350,000 gallons and any of the guarantors do not require or take such guarantor's proportion of the same the foregoing provision for diminution of the guarantee shall not apply to such guarantor as regards that week In the event of the pipes of the County Council being found to be incapable of delivering to the guarantors after providing for the domestic and sanitary requirements of the district the said minimum weekly supply of 350,000 gallons of surplus water the County Council shall be bound to introduce such new pipes and relative appliances as may be reasonably capable of delivering to the

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915. guarantors at least said minimum supply after making fair and reasonable provision for the future domestic and sanitary requirements of the district and that free of any extra expense to the guarantors except their proportions of the water assessments payable by them as proprietors within the district.

Fifth The guarantors shall be bound in each year to contribute to the total guarantee undertaken by them in proportion to the amounts assessed on them respectively for owners' and occupiers' water rates for the same year and they shall be entitled to receive the said weekly quantities of 350,000 gallons and 700,000 gallons (or such less quantity than 700,000 gallons as is available) respectively as the case may be as far as possible in the same proportions throughout the year provided always that the water shall be delivered to each of the guarantors through meters and through orifices of a diameter determined by the engineer to the County Council so as to be capable of delivering to the guarantors the weekly supplies of water which they are entitled to receive without extra charge during the two periods of six months above mentioned and any additional supplies the County Council may be able to deliver Said orifices may be adjusted if desired by the County Council at the commencement of each of the said periods with reference to the weekly quantities to be therein delivered After each term of Whitsunday in each year the total quantities delivered to each of the guarantors and the additional sums payable by them for additional water received or the sums repayable to them in respect of deliveries short of each guarantor's respective proportion of 350,000 gallons per week shall be ascertained The amounts payable or repayable as the case may be shall be added to or deducted from the amount of the current year's guarantee Each guarantor shall be responsible only for his own obligation and his own proportion of the guarantee and other payments to be made in terms of this agreement and shall not be liable jointly and severally for the obligations and payments of other guarantors.

Sixth In the event of the works of any of the guarantors being permanently closed down so as not to require any special supply of surplus water for trading or manufacturing purposes such guarantor shall no longer be entitled to a supply of water nor be bound to contribute to the guarantee in terms of this agreement and in that event the minimum weekly supply and further weekly supply before mentioned for the guarantors shall be proportionately reduced without prejudice to the power of the County Council to arrange with the remaining guarantors as to the disposal of the said guarantors' proportion of the said supplies and the payment in respect thereof But except in connection with such an arrangement the remaining guarantors shall not be liable for the proportion of the guarantee and other obligations under this agreement formerly affecting such guarantor whose works are permanently closed down.

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

A.D. 1915.

Seventh Without prejudice to the proportions in which water is to be delivered to the respective guarantors as aforesaid they shall be entitled subject to the approval of the County Council as regards details to arrange among themselves for the daily distribution of the weekly quantities of 350,000 gallons and 700,000 gallons (or such less quantity than 700,000 gallons as is available) as the case may be among their respective works in such proportions as they may desire provided always that such distribution shall not prejudice the supply of water throughout the district for domestic purposes and that if any additional pipes require to be introduced for the purpose of such distribution the guarantors or such of them as shall desire to receive a larger proportion by arrangement than the proportion to which such guarantors are entitled as above mentioned shall bear all the expense of and in connection with such additional pipes. If such additional piping is required by any guarantor the County Council shall make available for such guarantor all powers competent to them in connection with laying pipes including wayleaves right to lay pipes in public roads or otherwise and if the County Council thereafter desire to use for the general purposes of the district any pipes laid for the use of such guarantor at his expense they shall pay to such guarantor or his representatives the value of said pipes at the time of the County Council taking over the same for general purposes as the said value shall be fixed by an arbiter mutually chosen failing agreement. The employees of the County Council shall under the instructions of the County Council supervise and attend to this special distribution so far as this may be consistent with the performance of their ordinary duties but so far as such special distribution shall occasion additional expense to the County Council such additional expense shall be borne by the guarantor or guarantors desiring such distribution. If during any week in which the guarantors shall arrange for a special distribution of quantities among themselves the guarantors shall together take no more than the total weekly quantity of 350,000 gallons (during the said six months from May to October) or the total weekly quantity of 700,000 gallons during the remaining six months of the year as the case may be no charge shall be made for the said week against any guarantor who may have taken therein more than such guarantor's proportion of said quantities.

Eighth The meter rate for every 1,000 gallons of water supplied for other than domestic purposes to persons within the water supply district shall in any year be the nearest farthing above ten per cent. added to the quotient ascertained by dividing the total annual expenditure upon the water undertaking for maintaining and carrying on the same including such repairs and renewals as are reasonably chargeable against annual income and also interest and sinking fund in respect of borrowed money but excluding capital expenditure on new works

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915. in that year paid for out of borrowed money by the number of thousands of gallons which in the same year passed through the meter near the filters Provided that in the case of the guarantors during the currency of the guarantees the rate to be charged against them shall be one penny less than the meter rate as above ascertained for each 1,000 gallons of additional water taken by them respectively above their respective proportions of the said weekly quantities of 350,000 gallons and 700,000 gallons during the periods above mentioned During the currency of the guarantees persons supplied for the first time after the commencement of the Order with water for other than domestic purposes shall pay for the water consumed by them at meter rates which shall exceed by twopence per 1,000 gallons the rates chargeable to the guarantors.

Ninth Each of the guarantors shall keep all fittings and apparatus used within such guarantor's works in connection with the supply of water in good order and shall exercise such care and supervision as may be required by the County Council so as to avoid waste of water.

Tenth This agreement is made pursuant to the section of the Order of which the marginal note is "Agreements with traders" and subject to the provisions of the section of the Order of which the marginal note is "Purposes to which new water supply applicable."

Eleventh If any dispute or difference shall arise between any of the parties to this agreement or their respective successors or representatives touching the meaning or construction of this agreement or affecting the rights or liabilities of any of such persons hereunder the same shall be referred to an arbiter to be mutually chosen subject to the provisions of the Arbitration (Scotland) Act 1894 or any statutory modification thereof.

Twelfth It is hereby declared that this agreement is made subject to such alterations as may be made thereon or on the Provisional Order during the progress of the same but if any alteration be so made which in the opinion of the Dean of the Faculty of Advocates is material it shall be competent to either the County Council or the guarantors to withdraw from this agreement.

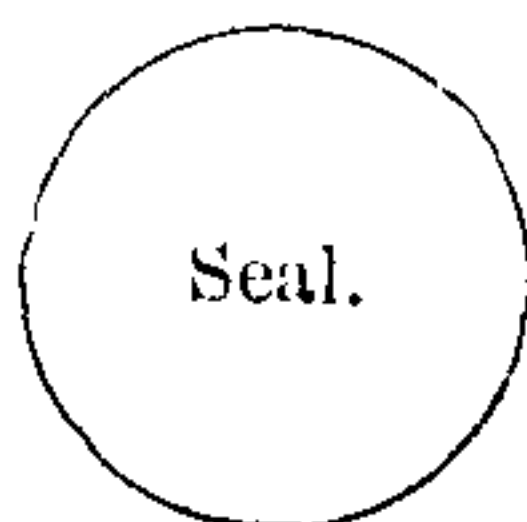
Lastly The parties agree to schedule this agreement to the Order and the parties consent to the registration hereof for preservation.

In witness whereof these presents typewritten on this and the ten preceding pages are executed by the parties along with a duplicate hereof as follows videlicet They are sealed with the common seal of the County Council of the county of Clackmannan and are signed by the Right Honourable the Earl of Mar and Kellie Knight of the Thistle and Richard Malcolm two members of the said council and

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

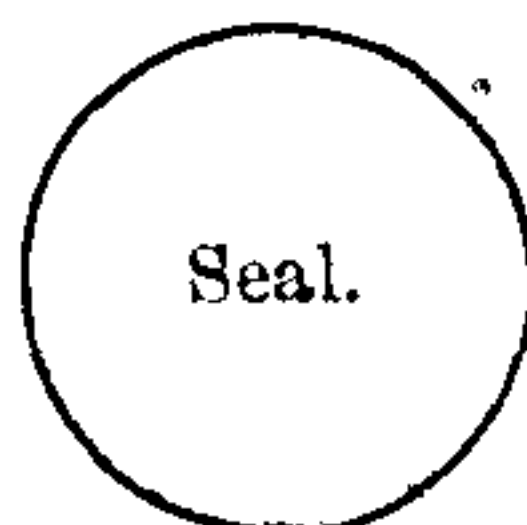
by James Whitehead Moir the county clerk all at Alloa on the twentieth day of March nineteen hundred and fifteen before these witnesses James Jamieson Cochrane clerk to the said James Whitehead Moir and William Walker Duncan caretaker in the County Buildings Alloa they are subscribed by the said firm of Robert Knox the signature of said firm being adhibited by the said Thomas Sime Knox and by the said Thomas Sime Knox and Ralph William Knox both at Alloa on the day in the month and year last mentioned before these witnesses James Dawson and David King both clerks to the said James Whitehead Moir they are sealed with the common seal of John Tullis and Son Limited and are subscribed on behalf of said company by Harry Price Tullis one of the directors and Joseph Middleton the secretary of said company (who in terms of the articles of association of said company are authorised to execute deeds on behalf thereof) at Glasgow on the twenty-second day of said month and year before these witnesses Robert Young clerk to the said company and William Gibson clerk to William Cochran and Son writers Glasgow and they are sealed with the common seal of the said The Distillers Company Limited and subscribed on behalf of said company by David Alexander and William Henry Ross two of the directors and David Rodger Kelly the secretary of said company at Edinburgh on the twenty-second day of said month and year last mentioned before these witnesses John Alexander Seatter and Theodore Napier Lambert both clerks to the said company last mentioned This testing clause so far as not typewritten being written by David Spence Gray clerk to Fraser Stodart and Ballingall writers to the signet Edinburgh.

JAMES J. COCHRANE Witness.
 WILLIAM WALKER DUNCAN
 Witness.



MAR AND KELLIE Convener.
 RICHARD MALCOLM County
 Councillor.
 J. W. MOIR Clerk.

JOHN A. SEATTER Witness.
 T. N. LAMBERT Witness.

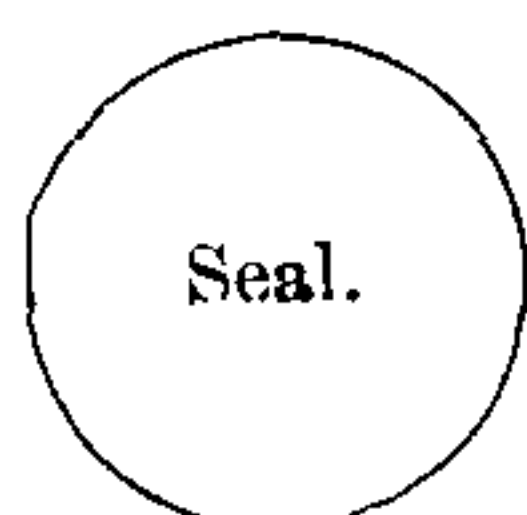


D. ALEXANDER Director.
 WILLIAM H. ROSS Director.
 DAVID R. KELLY Secy.

JAMES DAWSON Witness.
 DAVID KING Witness.

ROBERT KNOX
 THOMAS S. KNOX
 RALPH W. KNOX.

ROBERT YOUNG Witness.
 WILLIAM GIBSON Witness.



HARRY P. TULLIS Director.
 JOSEPH MIDDLETON Secy.

A.D. 1915.

THE FOURTH SCHEDULE.

IT IS HEREBY CONTRACTED AND AGREED between the parties following Lieutenant-Colonel JAMES HARE of Calderhall and Blairlogie heritable proprietor of the lands aftermentioned and the COUNTY COUNCIL OF THE COUNTY OF CLACKMANNAN hereinafter referred to as the County Council and as such the local authority for the said county for the execution of the Public Health (Scotland) Acts 1897 to 1907.

WHEREAS pursuant to the provisions of the Public Health (Scotland) Act 1867 portions of the parishes of Alloa and Tillicoultry situated within the said county were formed into a special water supply district by decree of the sheriff of Stirling Dumbarton and Clackmannan dated the 15th day of July 1896 :

And whereas by an Order of the Secretary for Scotland (hereinafter referred to as the Order of 1897) confirmed by the Clackmannan (Alloa and Tillicoultry) Water Order Confirmation Act 1897 the County Council were authorised to acquire compulsorily certain lands for the purpose of constructing a reservoir and other waterworks in the valley of the Loss Burn as shown on the plans deposited with reference to the Order of 1897 and of supplying water for domestic trading and manufacturing purposes within the said special water supply district :

And whereas by section 2 of the Order of 1897 it was provided that the said Order was made subject to the terms and conditions of a minute of agreement made between the Right Honourable George Ralph Campbell Baron Abercromby and the County Council dated 26th February and 3rd and 12th March 1897 and registered in the books of Council and Session the 25th day of March 1897 :

And whereas the said minute of agreement provides (inter alia) for the construction by the County Council of the said reservoir and other waterworks in the valley of the Loss Burn and made certain provisions for the protection of Lord Abercromby with regard to compensation water the construction and maintenance by the County Council of a suitable measuring gauge and for the inspection and examination thereof by Lord Abercromby or an engineer mutually appointed whom failing by the sheriff of the county :

And whereas an agreement dated 25th and 29th June 1st July and 8th and 10th September all in the year 1897 was entered into between the said Lieutenant-Colonel James Hare Steuart Welwood Hare Captain in Her Majesty's Royal Rifle Corps now a brigadier-general presently on active service and James Campbell Pitman

advocate Edinburgh original and assumed trustees acting under trust disposition and conveyance granted by the said Lieutenant-Colonel James Hare and the deceased Frederick Pitman as curator ad litem to the said Steuart Welwood Hare dated 27th May and 3rd and 15th June 1889 and the said County Council and another agreement dated 3rd 14th and 18th December 1900 was entered into between the same parties under which certain terms and conditions were agreed to in connection with the construction of said reservoir and rights of user and wayleave and other matters connected therewith:

A.D. 1915.
—

And whereas the County Council have constructed the said reservoir (which is known as the Loss Burn Reservoir) and other waterworks and are supplying water within the said special water supply district but the supply of water that can be obtained by means of those works is insufficient for the domestic and trading and manufacturing needs of the district and it is expedient that the County Council should be authorised to enlarge the said reservoir and to construct the other works and to appropriate and impound the waters of the streams described and mentioned in the Provisional Order (hereinafter called the "Order") promoted by the County Council in the present session of Parliament (session 1915) under the provisions of the Public Health (Scotland) Acts 1897 to 1907 and of the Private Legislation Procedure (Scotland) Act 1899:

And whereas the lands and others belonging to the said Lieutenant-Colonel James Hare will be affected by the terms of the Order by the acquisition of lands and servitudes and the appropriation and impounding of the waters and streams described in the Order against which a petition was presented at his instance:

And whereas the said Lieutenant-Colonel James Hare and the said County Council have agreed to certain terms and conditions for a settlement of the opposition of the said Lieutenant-Colonel James Hare for the acquisition of certain rights belonging to him and for the protection of his interests and it is desirable that said agreement should be embodied in writing and in the Order:

Therefore both the said parties have agreed and hereby agree and bind and oblige themselves and their respective successors as follows:—

First The said County Council agree to pay to the said Lieutenant-Colonel James Hare or his successors the sum of £750 as compensation for the appropriation and impounding of the waters of the streams described and referred to in the Order with the exception after-mentioned including the right to reduce the quantity of water presently being discharged from Loss Burn Reservoir into the stream from 168,400 to 120,000 gallons daily and reducing the flow in the

[Ch. cii.] *Clackmannan County Water Order [5 & 6 Geo. 5.]*
Confirmation Act, 1915.

A.D. 1915. --- Inchna Burn number 2 to a minimum of 10,000 gallons daily and also the servitude over or right of user of the road or track in the parish of Logie in the county of Stirling which is shown on the plans deposited with the Order and extends from a point in the Sheriffmuir Road eleven hundred and thirty yards or thereabouts measured in a north-westerly direction from the west end of the existing Loss Burn Reservoir of the County Council to a point in the said road or track forty yards or thereby measured in a westerly direction from the west side of Lipney Farm buildings as specified in the Order Provided always that the said County Council shall relieve the said Lieutenant-Colonel James Hare of all claims competent to lower heritors against him in respect of the curtailment of the existing flow of the Menstrie Burn providing and declaring further that the existing bye-pass channel along the north side of Loss Burn Reservoir is to be maintained and the water of the Keir Burn presently allowed to run by the said channel from the catchment area there is to be allowed to continue to so run and is not to be included in the acquisition by said County Council under these presents and it is agreed that if and when the County Council may desire to impound the waters of the said Keir Burn the price or consideration to be paid for the interest of the said Lieutenant-Colonel James Hare in and to the same shall be fixed failing agreement by arbitration.

Second The said payment is conditional upon the Order being duly confirmed by Parliament.

Third In lieu of discharging 60,000 gallons of water daily into the stream near the filters at Lipney as proposed under the Order the whole quantity of 120,000 gallons shall be discharged daily from the reservoir into the stream at the present point of discharge at said reservoir Further the said County Council shall be bound to erect gauges both at the Loss Burn Reservoir and also at the Inchna Burn No. 2 to regulate the amount of compensation water to be discharged daily from the said reservoir and from the said Inchna Burn.

Fourth The said County Council shall pay to the said Lieutenant-Colonel James Hare or his successors a sum at the rate of one shilling per lineal yard for the servitude right of laying and maintaining a line or lines of pipe track through the lands of Blairlogie within the limits of deviation shown upon the deposited plans referred to in the Order and the said Lieutenant-Colonel James Hare shall if required by and at the expense of the said County Council grant to them a valid deed of servitude for said line or lines of pipes and for the said servitude or right of user of the said drove road between the points described in the first clause hereof Further in exercising their right of access or user over the road referred to in article First hereof the County Council shall be bound to fill in the ruts made by them or their contractors

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

on said road to restore the said road and to maintain the said road as far as practicable in its present condition And in the event of the said County Council or their contractors or workmen requiring stone for repairing said road they shall be bound to arrange with the said Lieutenant-Colonel James Hare or his factors the place or places and the manner of removing such stone And it is further and specially agreed to by the said County Council that they shall take their contractors or the workmen employed by them bound not to use either for carts or foot traffic the portion of the said road leading from a point 40 yards westwards from the west side of Lipney Farm steading through the grounds of Montagu Cottage and terminating at the lodge at a point opposite Cotkerse. A.D. 1915.

Fifth The said Lieutenant-Colonel James Hare and the said County Council hereby agree that the price of such land as may be required for the purposes of the Order shall failing agreement be fixed by arbitration.

Sixth The said County Council shall pay for all compensation to tenants including shooting tenant for all damage which they may suffer in connection with the construction of the works or use of the said road between Lipney and the Loss Burn Reservoir and the said Lieutenant-Colonel James Hare or his successors shall be relieved of all liability for any claims that may hereafter be made against him or them in connection therewith.

Seventh The said County Council shall be bound to pay all expenses which have been or may be incurred by the said Lieutenant-Colonel James Hare or the said Steuart Welwood Hare in connection with the petitions by them against the Order the preparation and adjustment of this agreement and any conveyances servitude rights or agreement following thereon or otherwise and the expenses connected with the previous negotiations with the County Council relative to the proposed acquisition of additional water rights in the Loss Valley from and after fourteenth January nineteen hundred and thirteen being the date of the inspection by the engineer of the said Lieutenant-Colonel James Hare.

Eighth It is provided and declared that this agreement which shall be scheduled to the Order is made subject to such alterations as may be made thereon before confirmation but if in the opinion of the Dean of the Faculty of Advocates any material alteration be made thereon it shall be competent for either party to cancel the agreement And the parties hereto consent to registration hereof for preservation and execution.

In witness whereof these presents written on this and the three preceding pages by Duncan Mackay Matthews clerk to Maconochie

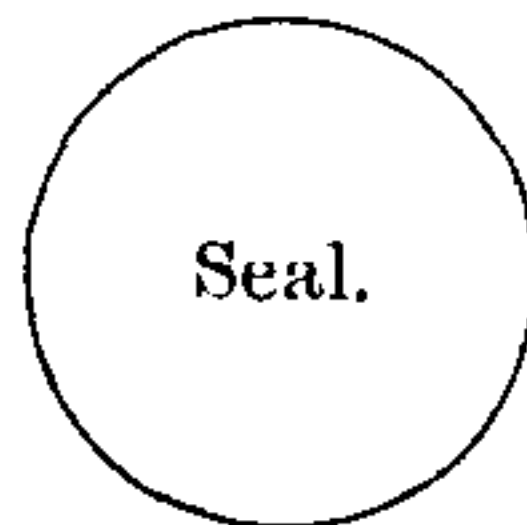
[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915. Duncan and Hare writers to the signet Edinburgh are under the declaration that the words "reservoir" being the last word on the eighth line of page second hereof "gauges" in the twenty-sixth line of page third hereof and "relative" in the twenty-third line of this page are all partly written on erasure executed in duplicate as follows They are sealed with the common seal of the County Council of Clackmannan and subscribed for and on behalf of the said County Council by the Right Honourable the Earl of Mar and Kellie Knight of the Thistle and Richard Malcolm two of the members and James Whitehead Moir the clerk all at Alloa on the first day of April nineteen hundred and fifteen before these witnesses James Jamieson Cochrane and James Dawson both clerks to the said James Whitehead Moir and they are subscribed by the said James Hare at Calderhall Midcalder on the sixth day of said month and year foresaid before these witnesses Thomas Alexander Frederick Hog residing at Calderhall aforesaid and George Armstrong chauffeur in the service of the said James Hare.

T. A. F. Hog Witness.
 GEORGE ARMSTRONG Witness.

J. HARE.

JAMES J. COCHRANE Witness.
 JAMES DAWSON Witness.



MAR AND KELLIE
 Convener.
 RICHARD MALCOLM C.C.
 J. W. MOIR County Clerk.

THE FIFTH SCHEDULE.

MINUTE OF AGREEMENT between the COUNTY COUNCIL OF THE COUNTY OF CLACKMANNAN being the local authority for the said county for the execution of the Public Health (Scotland) Acts 1897 to 1907 (hereinafter called "the County Council") of the first part and (first) The CHARRIER AND MARBUT CARVINGS LIMITED a company incorporated under the Companies Acts and having its registered office at 8a City Road London (hereinafter called "the Charrier Company") (second) WILLIAM ANGUS AND COMPANY SCOTLAND LIMITED a company incorporated under the Companies Acts and having its registered office at Angus Mills Menstrie in Scotland (hereinafter called "the Angus Company") (third) JAMES JOHNSTON Esq. Broom Hall Menstrie and stockbroker in Edinburgh MRS. CHRISTIAN

A.D. 1915.

HELEN JOHNSTON or PULLAR wife of William Lawrence Pullar manufacturer residing at Uplands Bridge of Allan Miss MARGARET ISABELLA JOHNSTON residing at Broom Hall Menstrie and Mrs. ALEXANDRINA M'NAB JOHNSTON or LAING wife of Athole Ogilvie Laing brewer residing at 17 Murrayfield Avenue Murrayfield Midlothian the said Mrs. Christian Helen Johnston or Pullar and Mrs. Alexandrina M'Nab Johnston or Laing acting herein with consents of their respective husbands (all hereinafter called "the Johnston family" and these presents being executed on behalf of the Johnston family by the said James Johnston on his own behalf and as mandatory for all the others of the Johnston family) and (fourth) Messrs. C. ROBERTS AND COMPANY woollen manufacturers Forthvale Mills Menstrie (hereinafter referred to as "the Forthvale Company") all parties of the second part.

The said parties considering that the County Council under the provisions of the Public Health (Scotland) Acts 1897 to 1907 and of the Private Legislation Procedure (Scotland) Act 1899 are promoters of a draft Provisional Order (hereinafter called "the Order") in which they seek inter alia powers for the construction of waterworks for the supply for the Alloa and Tillicoultry Special Water Supply District and for other purposes And whereas it is proposed by the Order that the County Council shall impound take appropriate store use and distribute for the purposes of the water supply of the Water Supply District and other purposes of the Order the waters of the streams called the Loss or Craigencash Burn and the Inchna Burn No. 2 and of all or any of the affluents of those streams and of all such streams springs and waters as may be impounded or intercepted by the said works or any of them :

And whereas the Charrier Company the Angus Company the Johnston family and the Forthvale Company are all owners of land and buildings in or near the village of Menstrie and are riparian proprietors and millowners on the Menstrie Burn and have legal rights and interests in the waters of the said Menstrie Burn which receives the waters referred to in the Order :

And whereas the Charrier Company the Angus Company the Johnston family and the Forthvale Company on the ground that their interests in the water in the Menstrie Burn would be seriously and prejudicially affected if the powers sought to be obtained by the County Council in the Order were obtained and exercised duly presented a petition to the Secretary for Scotland against the Order :

[Ch. cii.] *Clackmannan County Water Order* [5 & 6 GEO. 5.]
Confirmation Act, 1915.

A.D. 1915.

And further considering that the parties of the second part have now agreed with the County Council for a settlement of their opposition to the Order to the effect that the said opposition shall be withdrawn and that the County Council may obtain the powers sought by them in such form and manner as Parliament may determine and have further arranged with the County Council as to the terms and conditions upon which their rights and interests should be protected or compensated in view of said withdrawal all as hereinafter appearing :

Therefore the parties have agreed and hereby agree as follows:—

First In respect that the motive power used on the premises of the Charrier Company and the Angus Company which are contiguous is generated by two steam engines which utilise a considerable quantity of water derived from the Menstrie Burn and in respect that the parties are satisfied that if the powers sought by the Order are granted it will be necessary to substitute for the said steam engines some other engines or apparatus for generating applying and transmitting steam or electrical power either in the form of a gas engine or engines or a different kind of steam engine or engines or of electrical apparatus or otherwise with any necessary adjuncts (including any new buildings or erections for containing said apparatus) and it is estimated by the parties hereto that the total cost of these operations or installations including necessary apparatus and connections will amount to approximately the sum of £2,000 :

Therefore the County Council agree to pay to the Charrier Company and the Angus Company jointly the sum of £1,000 as a contribution towards the cost of these operations or installations which shall be carried out at the discretion of the advisers of the Charrier Company and the Angus Company :

The Charrier Company and the Angus Company conjunctly and severally undertake that the substituted scheme (including as above mentioned) to which the sum of £1,000 will be applied will be of such a nature that the actual expenditure will be within 15 per cent. of £2,000 and that they will actually carry the scheme into effective completion. The said sum of £1,000 shall be paid whenever the cost disbursed by the Charrier Company and the Angus Company or either of them for the purpose above mentioned shall amount to the said sum of £1,000 and if desired by the Charrier Company and the Angus Company payment of the said sum of £1,000 shall be made by instalments as the work proceeds but not more shall be payable at any time than the amount of expenditure for the purpose foresaid actually incurred up to the time. Moneys payable under these presents shall bear interest at the rate of five per centum per annum from the expiry of fourteen days after the same become payable in terms of this agreement until paid.

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

A.D. 1915.

Second In order to provide a supply of water for the future for the works of the Charrier Company and the Angus Company the County Council hereby agree at their own expense by means of a pipe from their existing or future mains to supply on the premises of the Charrier Company and the Angus Company such water as may be required for the purpose of their business and not otherwise as follows viz. A supply at the rate of two and one half gallons per hour per brake horse-power of the new installations mentioned in Article First hereof not exceeding (except as aftermentioned) a maximum quantity of 5,000 gallons per working day of 10 hours and also a further supply for general purposes of the mills not exceeding 1,000 gallons per working day of 10 hours making a total maximum quantity of 6,000 gallons which (subject to the proviso underwritten) shall not be exceeded except with the consent of the County Council Provided however that if in any day or days the said intended installation shall be actually worked for more than ten hours per day the above-mentioned supply at the rate of two and one half gallons per hour per brake horse-power shall be afforded also during the additional hours per day for which the said installation shall be worked but not for more than four additional hours in any working day unless with consent of the County Council The said supply shall be of a quality not inferior to what may be supplied by the County Council for manufacturing purposes to persons entitled to a supply within the water district After the said pipe and connections have been installed the Charrier Company and the Angus Company will keep them in repair so far as within their premises and exercise such care and supervision as may be reasonably required by the County Council to avoid waste of water and the County Council will keep them in repair so far as not within the premises of the Charrier Company and the Angus Company The supply will be timeously provided so that it shall be available to the Charrier Company and the Angus Company by the time that their interests in the Menstrie Burn are in effect affected by the exercise of the powers intended to be acquired by the County Council under the Order.

Third In respect that the premises of the Charrier Company and the Angus Company are protected against fire by a sprinkler installation and it is of importance to them in relation to fire insurance premiums and otherwise that the efficiency of this installation be maintained the County Council bind themselves at their own expense to lay a six-inch pipe into the Charrier Company's tank fitted with any necessary and convenient meter and ball cock and to use all reasonable diligence in repairing burst frozen or leaking pipes so as to have a continuous pressure of water at or in the sprinkler apparatus from their main pipe—dispensing with the present pumping arrangement The new method of water supply shall become operative not later than

[Ch. cii.] *Clackmannan County Water Order [5 & 6 GEO. 5.]*
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A.D. 1915. — the time at which the existing arrangement ceases to be effective The pipe and apparatus so far as within the premises of the Charrier Company and the Angus Company shall be maintained in efficient order by these companies respectively after installation but so far as the pipe is situated outside of these premises it shall be maintained in efficient order by the County Council The Charrier Company and the Angus Company undertake that there will be no avoidable waste of water But this undertaking by them is not to be so construed as to prevent a periodical test at reasonable intervals of the efficiency of the apparatus which test involves the use of a certain moderate quantity of water Moreover as during the winter season the sprinklers are charged with air (so as to prevent freezing of water in them) it is not to be regarded as waste of water when a quantity escapes through the substitution of air in the pipes:

In the event of any change in the constitution of the Charrier Company or the Angus Company or both or otherwise the rights of and obligations on the Charrier Company and the Angus Company respectively under this Agreement and the Order shall transmit in favour of and against their respective successors in the premises above mentioned owned and occupied by them respectively.

Fourth In respect of the acquisition of the water rights of the Johnston family and the withdrawal of their opposition the County Council hereby agree to pay to the Johnston family the sum of £115 within three months of the date of the Royal Assent to the Confirmation Bill confirming the Order with interest at the rate of five per centum per annum from the expiry of the said three months until paid The Johnston family agree to accept this sum in full of any damage to their property arising from the exercise of the powers under the Order and in full of their rights to water but subject to the conditions expressed in the Order as the same may be confirmed by Parliament and reserving their interest (along with others) in the compensation water for which the Order may provide.

Fifth In respect of the acquisition of the water rights of the Forthvale Company and the withdrawal of their opposition the County Council hereby agree to pay to the Forthvale Company the sum of £135 within three months of the date of the Royal Assent to the Confirmation Bill confirming the Order with interest at the rate of five per centum per annum from the expiry of the said three months until paid The Forthvale Company agree to accept the said sum in full of any damage to their property arising from the exercise of the powers under the Order and in full of their rights to water but subject to the conditions expressed in the Order as the same may be confirmed by Parliament and reserving their interest (along with others) in the compensation water for which the Order may provide.

[5 & 6 GEO. 5.] *Clackmannan County Water Order* [Ch. cii.]
Confirmation Act, 1915.

Sixth The County Council hereby agree to pay the cost of the petition by the second parties against the Order and the whole costs of the preparation and execution of this agreement as the same may if necessary be taxed by the auditor of the Court of Session. A.D. 1915.

Seventh The County Council undertake to make all reasonable and proper efforts to have this agreement incorporated in and scheduled to the Order in the usual way and thus confirmed by Parliament as part thereof.

Eighth If the Order shall not be confirmed by Parliament then this agreement except Article Sixth hereof shall be void and the rights of parties shall exist as if these presents had never been entered into.

Ninth This agreement is made subject to such alterations as may be made thereon during the progress of the Order Declaring however that if any alteration be so made which in the opinion of the Dean of the Faculty of Advocates is material it shall be competent to either of the parties hereto to hold the agreement as cancelled.

In witness whereof these presents written on this and the four preceding pages by Robert Hunter clerk to Morton Smart Macdonald and Prosser writers to the signet Edinburgh are executed in duplicate by the parties hereto as follows videlicet They are sealed with the common seal of the County Council and subscribed on their behalf by the Right Honourable the Earl of Mar and Kellie Knight of the Thistle and Richard Malcolm two of the members and James Whitehead Moir the county clerk all at Alloa on the first day of April in the year nineteen hundred and fifteen before these witnesses James Jamieson Cochrane and James Dawson both clerks to the said James Whitehead Moir they are sealed with the common seal of the Charrier Company and subscribed on their behalf by Alexander McNab and Arthur Oatley two of their directors and Harry George Tunstall their secretary all at London on the thirteenth day of April in the year last mentioned before these witnesses Albert Sutton warehouseman Rose Cottage Putney Common London and Lily Pengilley typist sixty-three Romilly Road Finsbury Park London they are sealed with the common seal of the Angus Company and subscribed on their behalf by William Angus one of their directors and Andrew Angus another of their directors and by the said Andrew Angus also as their secretary all at Menstrie on the eighteenth day of April in the year last mentioned before these witnesses William Henry Watkins residing at Elmbank Menstrie and Albert Lovel Howe residing at twenty-six James Street Stirling they are subscribed by the said C. Roberts and Company at Menstrie on the eighteenth day of April in

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A.D. 1915. the year last mentioned before these witnesses the said Albert Lovel Howe and Annie Smart (who subscribes "Nan Smart") residing at Banton Polmont and they are subscribed by the said James Johnston at Edinburgh on the twenty-first day of April in the year last mentioned before these witnesses John Smart Junior writer to the signet Edinburgh and Kenneth McKenzie Chisholm clerk to the said Morton Smart Macdonald and Prosser.

JAMES J. COCHRANE Witness.

JAMES DAWSON Witness.

Seal.

MAR AND KELLIE

Convener.

RICHARD MALCOLM C.C.

J. W. MOIR County Clerk.

A. SUTTON Witness.

L. PENGILLEY Witness.

Seal.

ALEX. McNAB Director.

A. OATLEY Director.

H. G. TUNSTALL Secretary.

W. H. WATKINS Witness.

A. L. HOWE Witness.

Seal.

WM. ANGUS Director.

A. ANGUS Director.

A. ANGUS Secretary.

A. L. HOWE Witness.

NAN SMART Witness.

C. ROBERTS & Co.

JOHN SMART JR. Witness.

KENNETH M. CHISHOLM

Witness.

JAMES JOHNSTON.

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